



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

AUG 20 2002

DOT-E 13025

EXPIRATION DATE: July 31, 2004

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Southern California Edison (SCE)
San Clemente, CA
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of one reactor pressure vessel head (RPVH) classed as a surface contaminated object, class II (SCO-II), and transported as a non-specification package under a transport plan from the San Onofre Nuclear Generating Station to the Envirocare of Utah low level waste facility in Clive, UT. This exemption provides no relief from the Hazardous Material Regulations (HMR) other than as specifically stated herein.
 - b. The safety analysis performed in the development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED:
 - a. 49 CFR § 173.403 in so far as the fixed and non-fixed contamination levels for SCO-II are waived for the RPVH specified in this exemption.
 - b. 49 CFR § 173.427(a) in that non-specification packaging for SCO-II is authorized as specified in this exemption.
5. BASIS: This exemption is based on the application of SCE dated April 30, 2002 submitted in accordance with § 107.105 and the public proceeding thereon.

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6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Radioactive material, surface contaminated objects (SCO-II) <i>non fissile or fissile excepted</i>	7	UN2913	N/A

7. SAFETY CONTROL MEASURES:a. PACKAGING -

(1) Under the provisions of this exemption, the RPVH is considered to be a non-specification package which must be transported in accordance with the SCE transport plan on file with the Office of Hazardous Materials Exemptions and Approvals.

(2) The contamination levels and radionuclides present on the RPVH must be consistent with the levels identified in SCE's application.

(3) Prior to shipment, contamination surveys must be conducted. All external areas with non-fixed contamination that is in excess of DOT requirements (22 dpm/cm² for Beta & Gamma; 2.2 dpm/cm² for Alpha) must be decontaminated or treated with a fixative and/or paint.

b. OPERATIONAL CONTROLS -

(1) The components must be consigned as exclusive use under the provisions of § 173.427(a)(6).

(2) All controls, provisions and routes specified in the transportation plan submitted as Attachment 6 to the original application must be followed.

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c. COMMUNICATION -

(1) The package must be plainly and durably marked "DOT-E 13025" in accordance with § 172.301(c).

(2) The package must be marked, labeled, placarded in accordance with the provisions of § 173.427(a)(6) for SCO required to be shipped as exclusive use. If appropriate, the package must also be stenciled with the letters "RQ".

8. SPECIAL PROVISIONS: A current copy of this exemption must be maintained at each facility where the packages are offered for transportation.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:
 - o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

AUG 20 2002

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: RBoyle